Diligent Search	Number	Page
	04.09.01	1 of 5

Revision Date:
October 1, 2026

Background:
Customers may need assistance in providing information necessary for an eligibility determination due to amnesia, being in a comatose condition, or any other condition that impedes them from acting on their own behalf when no qualified representative is available.

Purpose:
This section provides guidance for processing an application through a diligent search process. The section has been updated for sunset review and to include examples of qualified representatives.

Policy:
Eligibility staff must complete the diligent search process regardless of whether the customer's identity is known. Diligent search involves the process of searching for a customer's identity, available income, and available resources when the customer is unable to assist in the application process and there is no qualified representative to complete the Statement of Facts (SOF) or act on their behalf. Examples of qualified representatives in rank order are:

- Spouses.
- Guardians.
- Conservators.
- Executors.
- Individuals with legal authority such as Power of Attorney.
- Relatives or persons with sufficient knowledge of the applicant's circumstances.
- Representatives of a public agency or county department.

Action cannot be taken on an application until ineligibility has been determined or a diligent search and a referral to the State Programs-Disability Determination Services Division (SP-DDSD), if appropriate, have been completed. Refer to Medi-Cal Program Guide (MPG) 05.04 DDSD Referrals for additional guidance.

A. Diligent Search Overview

Eligibility staff must take the following actions in the diligent search process:

- Determine and document the customer's competence.
- Refer customers between the ages of 21 and 64 to the SP-DDSD for a disability determination.
- Conduct a reasonable search of all available information.
- Determine eligibility based on diligent search findings.
- Refer customers to the public guardian or conservator's office, if appropriate.

B. Determining and Documenting a Customer's Competency

Before completing a diligent search, eligibility staff must determine the customer's competency to confirm if they are capable of handling their own affairs. Eligibility staff will assess the customer's competence based on their ability to adequately respond to routine questions asked as part of the eligibility determination process. This assessment is not considered a legal or medical determination. Refer to MPG 04.02.05B Competency for steps to take when conducting a competency determination.

Some examples of cases that require a diligent search process involve customers who are deceased, comatose or have amnesia. The determination of incompetence must be documented in the journal entry.

C. Referral for a Disability Determination

Individuals with a condition that impedes them from acting on their own behalf must be referred to the SP-DDSD unless they appear to be under the age of 21 or over the age of 64. The eligibility staff making the referral must sign the Authorization for Release of Information (MC 220) and write "person is comatose" or "person is deceased" as applicable on the face of the form. A Disability Determination and Transmittal (MC 221) and Applicant's Supplemental Statement of Facts for Medi-Cal (MC 223) must be completed with all available information.

D. Diligent Search – Identity

When a hospital staff member has attempted and is unable to establish the identity of a customer who is comatose, amnesiac, or lacks mental competency, eligibility staff must document all reasonable attempts in a journal entry. If the customer is deceased and law enforcement officials are involved, information on identity must be requested from the appropriate agency.

E. Diligent Search – Income and Property

For customers whose identity is known, conduct a diligent search by reviewing the following:

- Medi-Cal Eligibility Data System (MEDS) search by Social Security Number (SSN) or, if unavailable, by name and county.
- The Income and Eligibility Verification System (IEVS) abstract to:
  - Verify Social Security benefits or by calling 1-800-772-1213.
  - Verify wages, Unemployment Insurance/Disability Insurance (UI/DI) information.
  - Identify the existence of any interest-bearing accounts.
- Verification of Veteran's Administration (VA) benefits via the Military Verification and Referral **(**MC 05).
- Bank statements that show an automatic deposit with the source of the income identified.
- The Asset Verification Program (AVP) for customers who appear to be over the age of 65.
- Additional third-party contacts (must be fully documented in the journal entry).
- Verification of vehicle registration through a written request to the Department of Motor Vehicles (DMV).
- Property search via the County Assessor's Office website or by calling the County Assessor's Office to determine if the customer has any real property in San Diego County.
- If the customer’s personal effects indicate a specific bank account, staff must use the Release of Information-Financial Institution (CW 60) to request information for all accounts belonging to the customer. If the banking institution confirms that the customer owns stocks, bonds, or mutual funds, staff must contact a recognized stock exchange broker to determine their current sales value or establish the current selling price through current listings.
- If information contained in the personal effects, such as a passbook or check register, provides an account balance, staff may use this information in determining eligibility.
- If the bank refuses to provide the requested information, the effort must be documented in a journal entry.

When requesting any of the above information, staff must include a cover letter indicating that the customer is comatose or deceased and cannot sign a release of information form. Also include that there is no person authorized to act on behalf of the customer and the County is trying to establish the individual's Medi-Cal eligibility.

F. Determine Eligibility Based on Findings

An eligibility determination based on the results of a diligent search will be completed the same way as any other determination.

- Residency requirements are considered to be met in the absence of information to the contrary.
- Only the income and resources discovered through diligent search will be considered available.
- If the customer is the only person who has access to the income or resources, these accounts are considered unavailable until staff is notified otherwise.
- Restricted/limited scope benefits must be granted if unable to obtain acceptable citizenship/identity documents to verify Satisfactory Immigration Status (SIS) or United States (U.S) citizenship status at the end of the diligent search process.

Upon completion of the Medi-Cal eligibility determination, the Supervising Human Services Specialist (SHSS) must approve the eligibility staff's determination by countersigning the SOF.

G. Referral to Public Guardian or Conservator

Customers who are unable to act on their own behalf and have no qualified representative must be referred to the Public Guardian or Conservator's Office. If the public guardian's office accepts responsibility, eligiblity will be determined based on the information provided by that office. If the Public Guardian's office does not respond or accept responsibility, staff must document the attempt in a journal entry and proceed with the diligent search process.

Referrals must be submitted on the Health and Human Services Agency (HHSA) Public Guardian website:

- https://www.sandiegocounty.gov/content/sdc/hhsa/programs/ais/Services/Public-Guardian.html

When a customer is deceased, a referral must be submitted to the HHSA Public Administrator:

- https://www.sandiegocounty.gov/content/sdc/hhsa/programs/ais/Services/Public-Administrator.html

Note: Staff must not delay referrals to the Public Guardian or Conservator's Office even if the customer's medical records, financial information, and other evidence of the customer's inability to manage their affairs are unavailable.

H. Acting on Changes

Diligent search efforts will end if at any time during the application to determine eligibility the customer's condition changes or a friend/relative is found **and** the information can be obtained in the usual manner. The case record must be updated to reflect the customer's verified identity and eligibility status. Any previously disregarded income and property must be reviewed for availability.

If the customer …	then …
remains eligible and a Medi-Cal Client Index Number (CIN) has been assigned,	retain the CIN and update the aid code if there is a change in eligibility status.
is found to be ineligible,	deny or discontinue the case with timely and adequate notice.

Note: If the friend/relative is unable to supply the information or is non-cooperative, then they do not meet the qualified representative criteria, and the diligent search effort must continue. Refer to MPG 04.02.05 Persons Who May Complete and Sign the Statement of Facts (SOF) for additional information.

Automation:

Processing Diligent Search Cases

The following information must be entered in the California Statewide Automated Welfare System (CalSAWS) for diligent search cases:

- **Name** - John C. Doe or Jane C. Doe for those whose name is unknown.
- **Aid Code** - When the customer's age is unknown, use the following aid codes:

If the customer's age appears to be …	then use aid code …
Under 21,	82
Over 21-64,	38
Over 21-64 and in an Intermediate Care Facility/Skilled Nursing Facility (ICF/SNF).	53
65 or over	14, 17 or 13 when in ICF/SNF

- **Birth Date** - When the customer's age is unknown, use "01" for the month, "01" for the day, and the following for the year of birth:

If the estimated age is …	then use the current year minus…
Under 21,	10 years.
Between 21 and 64,	40 years.
65 or over,	70 years.

- **SSN** – Must be left blank if unknown. MEDS will assign a pseudo number.
- **Medicare Beneficiary Identifier (MBI) Number** - Must be left blank if unknown.
- **Address** – The Family Resource Center (FRC) Post Office (P.O) Box processing the case must be used.

Program Impacts:

None

References:

All County Welfare Directors Letters (ACWDLs) 94-62, 02-28, 11-11, 12-17
Medi-Cal Eligibility Procedures Manual (MEPM) 4I, 22C, 22C-1, 22C-7
Medi-Cal Eligibility Division Information (MEDILs) 20-33, 20-33E, 26-04

Sunset Date:

This policy will be reviewed for continuance by September 30, 2029.

Approval for Release:



Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services